



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

JUL 22 1999

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 12321

EXPIRATION DATE: September 30, 1999

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Safety-Kleen Services, Inc.
Columbia, SC
2. PURPOSE AND LIMITATION:
 - a. This emergency exemption authorizes the one-time, one-way, transportation in commerce of waste flammable liquids in nine UN1A2 drums marked for solids. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.202 in that drums marked for solids are authorized for liquids.
5. BASIS: This emergency exemption is based on the application of Safety-Kleen Services, Inc. dated July 22, 1999, submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant injury to persons or property.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper shipping name -- Hazardous materials description	Hazard Class/ Division	Identi- fication Number	Packing Group
RQ Hazardous waste liquids, n.o.s. (chlorobenzene)	9	UN3082	III
RQ Waste flammable liquid, n.o.s., (chlorobenzene)	3	UN1993	II

7. PACKAGING AND SAFETY CONTROL MEASURES:

a. PACKAGING - The packagings authorized are 9 steel drums marked as UN1A2/X400/S/99/USA/M4453.

b. OPERATIONAL CONTROLS

(1) Shipment will be one-time, one-way, from the Safety-Kleen Services, Inc. facility in Heath, OH to the Safety-Kleen Services, Inc. facility in Smithfield, KY, a distance of approximately 190 miles.

(2) Shipments must be made in trucks owned and operated by Safety-Kleen.

(3) Drums must be securely restrained within the vehicle to prevent movement during transportation.

8. SPECIAL PROVISIONS: A current copy of this exemption must be maintained at each facility where the package is offered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

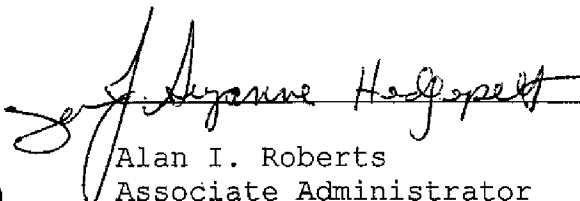
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Alan I. Roberts

Associate Administrator
for Hazardous Materials Safety

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Address all inquiries to: Associate Administrator for
Hazardous Materials Safety, Research and Special Programs
Administration, Department of Transportation, Washington, D.C.
20590.

Attention: DHM-31.

The original of this exemption is on file at the above office.
Photo reproductions and legible reductions of this exemption
are permitted. Any alteration of this exemption is
prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S.
Department of Transportation, 400 7th Street, S.W.,
Washington, DC 20590-0001, Attention: Records Center, 202-366-
5046.

Dist: FHWA
PO: AM